

ENCAP ENERGY CAPITAL FUND XII, L.P.
AMENDMENT TO
AGREEMENT OF LIMITED PARTNERSHIP

This Amendment (“**Amendment**”) to the Amended and Restated Agreement of Limited Partnership of EnCap Energy Capital Fund XII, L.P., a Delaware limited partnership (the “**Partnership**”), is entered into effective August 31, 2023 (the “**Effective Date**”), by the General Partner (as defined below) in its capacity as the general partner of the Partnership. All capitalized terms used but not defined in this Amendment shall have the meanings ascribed to them in the Partnership Agreement (as defined below).

RECITALS

A. Reference is herein made to the Amended and Restated Agreement of Limited Partnership, dated as of May 17, 2023, by and among EnCap Equity Fund XII GP, L.P., a Delaware limited partnership (the “**General Partner**”), as the general partner, and the Limited Partners, governing the Partnership (the “**Partnership Agreement**”).

B. Pursuant to Section 12.1 of the Partnership Agreement, the General Partner has proposed to amend the Partnership Agreement as provided in this Amendment.

NOW, THEREFORE, as of the Effective Date, it is hereby agreed as follows:

1. **Amendments to the Partnership Agreement.**

a. Section 5.7(b) of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

(b) The General Partner has the liabilities set forth herein and, unless otherwise modified herein, under the Act to (i) Persons other than the Partnership and the other Partners and (ii) the Partnership and the other Partners. No Covered Person shall be liable to the Partnership or any Partner, and each Partner does hereby release such Covered Person, for any act or omission, including any mistake of fact or error in judgment, taken, suffered or made by such Covered Person in good faith and in the belief that such act or omission is in or is not contrary to the best interests of the Partnership and is within the scope of authority granted to such Covered Person by this Agreement, provided that such act or omission (x) in the instance of a Covered Person, other than a member of the LPAC, was not the result of fraud, willful or intentional misconduct or criminal wrongdoing, gross negligence, a material breach of applicable securities laws or a breach of this Agreement, the Management Agreement, or any Side Letter which materially and adversely affects the business and operations of the Partnership or the Limited Partners’ investment in the Partnership and (y) in the instance of a Covered Person who is or was a member of the LPAC, was not the result of fraud or willful or intentional misconduct.

- b. Section 5.8(a) of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

(a) The Partnership shall indemnify to the maximum extent permitted under the Act and save harmless each Covered Person from and against any and all losses, claims, demands, liabilities, expenses, judgments, fines, settlements and other amounts arising from any and all claims, demands, actions, suits or proceedings, whether civil, criminal, administrative or investigative, of whatever nature that may accrue to or be incurred by any Covered Person or in which a Covered Person may be involved, or threatened to be involved, as a party or otherwise, that relates to or arises out of the Partnership or its business and affairs. Notwithstanding the foregoing, (i) no Covered Person shall be indemnified by the Partnership for any acts or omissions by the Covered Person that (A) in the instance of a Covered Person, other than any member of the LPAC or any Limited Partner represented by any member of the LPAC, constitute fraud, willful or intentional misconduct or criminal wrongdoing, gross negligence, a material breach of applicable securities laws or a breach of this Agreement, the Management Agreement, or any Side Letter which materially and adversely affects the business and operations of the Partnership or the Limited Partners' investment in the Partnership or (B) in the instance of a member of the LPAC or any Limited Partner represented by any member of the LPAC, that constitutes fraud or willful or intentional misconduct and (ii) no Covered Person in its capacity as a Limited Partner shall be indemnified for any losses arising from its Commitment to or interest in the Partnership.

- c. Section 5.8(g) of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

(g) A Covered Person shall not be denied indemnification in whole or in part under this Section 5.8 because the Covered Person had an interest in the transaction with respect to which the indemnification applies if the transaction was otherwise permitted and approved pursuant to the terms of this Agreement and in the absence of any fraud, willful or intentional misconduct or criminal wrongdoing, gross negligence, a material breach of applicable securities laws or a breach of this Agreement, the Management Agreement, or any Side Letter which materially and adversely affects the business and operations of the Partnership or the Limited Partners' investment in the Partnership on behalf of the Covered Person and its Affiliates.

- d. Section 11.4(a) of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

(a) Those Investor Limited Partners whose aggregate Investor LP Percentages exceed 66 2/3% may elect to remove the General Partner as the general partner of the Partnership within 120 days after notice is given to the Limited Partners of the occurrence of a Cause Event. As used herein, a “**Cause Event**” shall mean (i) the conviction by a court of competent jurisdiction of the General

Partner, the Manager, or a Principal of a felony or a plea of nolo contendere (or its equivalent) in respect of same, in each case having a material adverse effect on the Partnership; (ii) the adjudication by a court of competent jurisdiction of fraud, willful or intentional misconduct, gross negligence or a material violation of applicable Securities laws by the General Partner, the Manager, or any Principal with respect to the Partnership; (iii) a material breach by the General Partner of any of its duties or obligations hereunder, or any of its material representations made herein, which breach is not cured within 60 days after receipt by the General Partner of a notice authorized by Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 51% that the applicable Investor Limited Partners believe that the General Partner has committed such a material breach (provided, that if such breach is not reasonably susceptible to cure within such 60-day period and if the General Partner is diligently and in good faith taking action to cure such breach, such 60-day period shall be extended for the period of time reasonably necessary for the General Partner to cure such breach, not to exceed 120 days); ~~or~~ (iv) a material breach by the Manager of any of its duties or obligations under the Management Agreement, which breach is not cured within 60 days after receipt by the Manager of a notice authorized by Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 51% that the applicable Investor Limited Partners believe that the Manager has committed such a material breach (provided, that if such breach is not reasonably susceptible to cure within such 60-day period and if the Manager is diligently and in good faith taking action to cure such breach, such 60-day period shall be extended for the period of time reasonably necessary for the Manager to cure such breach, not to exceed 120 days) or (v) the occurrence of an event described in Section 17-402(a)(4) of the Act with respect to the General Partner.

- e. Section 11.4(g)(i) of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

(i) Effective as of the Removal Date, (A) the Removed GP's interest in the Partnership as a general partner shall automatically be deemed converted into an interest in the Partnership as a limited partner and the Removed GP shall automatically be deemed admitted to the Partnership as a Limited Partner immediately prior to the removal and for the purpose of receiving Carried Interest Distributions, (B) the Removed GP's duties and obligations as General Partner to the Partnership and the Limited Partners under this Agreement, including those under Sections 5.4(a), 5.5, and 5.6, shall cease and be of no further force and effect, provided, however, that the Removed GP shall remain liable under Section 9.4 and the Clawback Guaranty shall remain in full force and effect, (C) for purposes of a vote or a Consent, each Related Limited Partner shall be deemed to be an Investor Limited Partner on and after the Removal Date, (D) the Removed GP shall have no right to receive Carried Interest Distributions with respect to any Portfolio Investment that the Partnership and the party with whom the investment is to be made have not signed a letter of intent (or other similar instrument) or definitive agreement with respect thereto at the time of the

Removed GP's removal (provided, that the foregoing shall not be deemed to limit or modify the Removed GP's rights to receive the payment, if any, provided in ~~Section 11.4(f)(vi) and 11.4(i)~~, and (E) the Partnership's power and authority to make investments in (and fund Capital Contributions to) Portfolio Companies shall be limited solely to those Portfolio Companies in existence on the Removal Date or with respect to which the Partnership was contractually obligated to become an investor in on the Removal Date.

- f. Sections 13.12(k), (l), and (m) of the Partnership Agreement are hereby deleted in their entirety and replaced with the following (*marked to show changes*):

(k) ~~To the best knowledge of the~~The General Partner, ~~the General Partner~~ and its Affiliates and Persons acting on their behalf have not taken any action, or failed to take any action, which has caused the organization of the Partnership and the issuance of the interests in the Partnership to come within the registration requirements of the Securities Act or any applicable state blue sky laws. The offer and sale of partnership interests herein and in the Feeder Funds has been and will be made only to investors who represent to the General Partner that they were or are, as applicable, "accredited investors" within the meaning of Regulation D of the Securities Act. Neither the General Partner, directly or indirectly, nor any agent acting on its behalf has offered or will offer such interests or any similar Security to any Person so as to bring the issuance and sale of such interests within the registration requirements of such Act.

(l) ~~To the best of the General Partner's knowledge, the~~The Confidential Offering Memorandum, did not, as of the date it was prepared, contain any untrue statement of a material fact or omit to state a material fact necessary to make the statements therein not misleading (other than facts which are recognized to be industry risks normally associated with the alternative energy and/or renewables industry); provided, however, that the terms and provisions of this Agreement and the agreements governing the Feeder Funds supersede in all respects the terms described in the Confidential Offering Memorandum for the Partnership and the Feeder Funds.

(m) ~~To the best of the General Partner's knowledge, other~~Other than as disclosed in the Confidential Offering Memorandum, as of the Initial Closing Date, there is no legal action, suit, arbitration or other legal, administrative or other governmental investigation, inquiry or proceeding (whether federal, state, local or foreign) pending or threatened against or affecting (i) the Partnership or any of its properties or assets, (ii) the General Partner or any of its properties or assets, (iii) any of the General Partner's general partners, limited partners or members or, to the extent not otherwise covered in this clause (iii), any of the Principals to the extent such litigation is brought against any Principals in such capacity or otherwise in a fiduciary capacity, (iv) any entity which is an Affiliate of the General Partner or any properties or assets of such affiliated entity or (v) any prior fund managed by the Principals or any properties or assets of any such prior fund. ~~To the best knowledge of the General Partner, other~~Other than as disclosed in the Confidential

Offering Memorandum, there is no reasonable basis for any action, suit, arbitration, investigation, inquiry or proceeding of the type referred to in the immediately preceding sentence. Notwithstanding the foregoing, for purposes of clauses (i), (iv) and (v) above, the General Partner makes no representation or warranty regarding any legal action, suit, arbitration, or other legal, administrative or other governmental investigation, inquiry or proceeding pending or threatened against a Portfolio Company of the Partnership or a portfolio company of any of the prior funds, provided none of the Partnership, the General Partner, any Principals (to the extent such litigation is brought against them in such capacity or otherwise in a fiduciary capacity), or any of the prior funds is named as a party thereto, unless an adverse outcome of such litigation could have a material adverse effect on the Partnership or any such prior fund as a whole. During the five-year period prior to the Initial Closing Date, other than as disclosed in the Confidential Offering Memorandum, none of the General Partner or any Principal has been the subject of any action, proceeding or investigation that claimed or alleged fraud, misrepresentation or a material violation of any federal or state Securities law, rule or regulation.

2. **Effect.** Except as expressly modified by this Amendment, the terms and provisions of the Partnership Agreement remain in full force and effect in accordance with their terms. This Amendment shall bind and benefit the partners of the Partnership and their respective heirs, beneficiaries, administrators, executors, receivers, trustees, successors and assigns.
3. **Counterparts.** This Amendment may be executed in one or more counterparts, each of which shall be an original and all of which shall constitute but one and the same document.
4. **Applicable Law.** Section 13.6 of the Partnership Agreement is hereby incorporated by reference into this Amendment and shall apply as if fully set forth herein *mutatis mutandis*.

IN WITNESS WHEREOF, the parties hereto have executed this Amendment as of the date and year first above written.

GENERAL PARTNER:

ENCAP EQUITY FUND XII GP, L.P.

By: EnCap Equity Fund XII GP, LLC, its
general partner

By: EnCap Investments L.P., its sole member

By: EnCap Investments GP, L.L.C., its general
partner

By: EnCap Investments Holdings, LLC, its sole
member

By: EnCap Partners, LP, its managing member

By: EnCap Partners GP, LLC, its general partner

By: Jason DeLorenzo
Name: Jason M. DeLorenzo
Title: Managing Member

SIGNATURE PAGE TO AMENDMENT TO
AGREEMENT OF LIMITED PARTNERSHIP OF
ENCAP ENERGY CAPITAL FUND XII, L.P.